

RESIDENTIAL TENANCY AGREEMENT
(Residential Tenancies Act 1997)

CONDITIONS OF AGREEMENT

1. **THIS AGREEMENT** is made on the date specified in item 1 in the Schedule hereto **BETWEEN** the **LANDLORD** whose name and address is specified in item 2 in the Schedule whose agent is specified in item 3 in the Schedule and the **TENANT** whose name and address is specified in item 4 in the Schedule.

PREMISES AND RENT

The **LANDLORD** lets to the **TENANT** the **PREMISES** specified in item 5 in the Schedule together with those items indicated in the Schedule, for which the **RENTAL** shall be the amount specified in item 6 in the Schedule of which the first instalment is payable on the date specified in item 7 of the Schedule and payable by the **TENANT** to the party specified in item 8 in the Schedule.

BOND

The **TENANT** shall pay a **BOND** of the amount specified in item 9 of the Schedule to the **LANDLORD/AGENT** on or before the signing of this Agreement.

In accordance with the Residential Tenancies Act 1997 the **LANDLORD/AGENT** must lodge the **BOND** with the Residential Tenancies Authority within 10 business days of receiving the **BOND**.

FIXED TERM TENANCY

The term of this Agreement shall be as specified in item 11 of the Schedule **COMMENCING** on the date specified in item 12 in the Schedule and **ENDING** on the date specified in item 13 in the schedule and unless either party terminates this Agreement in accordance with the provisions of the Residential Tenancies Act 1997 this Agreement shall then continue as a periodic tenancy.

OR

PERIODIC TENANCY

This Agreement shall commence on the date specified in item 13 in the Schedule and continue until terminated in accordance with the Residential Tenancies Act 1997.

2. **CONDITION OF THE PREMISES**

The **LANDLORD** shall make sure that the premises are maintained in good repair.

3. **DAMAGE TO THE PREMISES**

- (a) The **TENANT** shall make sure that care is taken to avoid damaging the premises.
- (b) The **TENANT** shall give notice to the **LANDLORD** of any damage to the premises as soon as the **TENANT** becomes aware of the damage.

4. **CLEANLINESS OF THE PREMISES**

- (a) The **LANDLORD** shall make sure that the premises are in a reasonably clean condition on the day on which it is agreed that the **TENANT** shall enter into occupation of the premises.
- (b) The **TENANT** shall keep the premises in a reasonably clean condition during the period of Agreement.

5. **USE OF PREMISES**

- (a) The **TENANT** shall not use or allow the premises to be used for any illegal purpose.
- (b) The **TENANT** shall not use or allow the premises to be used in such a manner as to cause a nuisance.

6. **QUIET ENJOYMENT**

The **LANDLORD** shall take all reasonable steps to make sure that the **TENANT** has quiet enjoyment of the premises.

7. **ASSIGNMENT OR SUB-LETTING**

- (a) The **TENANT** shall not assign or sub-let the whole or any part of the premises without the consent of the **LANDLORD**. The **LANDLORD'S** consent shall not be unreasonably withheld.
- (b) The **LANDLORD** shall not demand or receive any fee or payment for the consent, except in respect of any fees, costs or charges incurred in relation to the preparation of an assignment in writing of this Agreement.

8. **RESIDENTIAL TENANCIES ACT 1997**

Both parties to the Agreement shall comply with the provisions of the Residential Tenancies Act 1997 as they apply to each party.
(Note: Reference should be made to Part 2 of the Residential Tenancies Act 1997 for further rights and duties).

9. The **TENANT** shall pay all charges in respect of the re-connection and consumption of water, electricity, gas, oil and telephone where the rented premises is separately metered for these services.

10. The **TENANT** shall not do or allow anything to be done which would invalidate any insurance policy on the premises or increase the premium and the **TENANT** shall pay the **LANDLORD** all increased premiums and all other expenses incurred as a consequence of any breach of this term.

11. The **TENANT** agrees to pay the **LANDLORD** any excess amount charged or any additional premium charged by the **LANDLORD'S** Insurance Company as a result of accidental breakage of glass, toilet bowls and wash basins in the premises where the damage has been caused by the **TENANT**, or by anyone on the premises with the consent of the **TENANT**.

12. The **TENANT** shall indemnify the **LANDLORD** for any loss or damage caused by failure to ensure that care is taken to avoid damaging the rented premises by the **TENANT** or anyone on the premises with the consent of the **TENANT**. Without limiting the generality of the foregoing, the **TENANT** shall indemnify the **LANDLORD** for the cost of repairs to plumbing blockages caused by the negligence or misuse of the **TENANT**.

Please Sign Here:



ADDITIONAL TERMS

Additional terms which do not take away the rights and duties included in the Residential Tenancies Act 1997 may be set out in this Section.

13. The **TENANT** shall notify the **LANDLORD** or **AGENT** immediately upon becoming aware of any defects in the premises or any other matter which may give rise to a liability pursuant to the Occupiers Liability Act 1983.
14. The **TENANT** shall indemnify the **LANDLORD** against all liability in respect of injury or damage to any third party property arising from any conduct, act or omission by the **TENANT**, or the **TENANT'S** servants, **AGENT'S** and/or invitees.
15. The **TENANT** shall not paint or affix any sign or any antenna onto the premises or affix any nail, screw, fastening or adhesive to the interior of the premises without the prior written consent of the **LANDLORD** or **AGENT**.
16. The **TENANT** acknowledges that it is the **TENANT'S** responsibility upon the termination of the Agreement to deliver all the keys, and remotes as applicable, to the premises to the **AGENT'S** office and to continue paying rent until such time as all the keys, and remotes as applicable, are delivered.
17. The **TENANT** shall not use the premises for any purpose other than for residential purposes without the written consent of the **LANDLORD**.
18. The **TENANT** shall not do or allow to be done anything that will cause the shared service facilities to become obstructed, untidy, damaged or used for any purpose other than for which they are intended.
19. The **TENANT** shall not keep any animal, bird or pet on the premises without the written consent of the **LANDLORD**. (Note: written consent of the Body Corporate Committee will be necessary in an own-your-own unit).
20. The **TENANT** shall deposit all rubbish including cartons and newspapers in a proper rubbish receptacle with a close fitting lid as required by the Health Department or Local Council. Such rubbish receptacle shall be kept only in the place provided and placed out by the **TENANT** for collection by the Local Council or Health Department and returned to its allotted place.
21. The **TENANT** shall not hang any clothes outside the premises other than where provision for the hanging of clothes has been provided.
22. The **TENANT** shall not keep or use in the premises any portable kerosene heaters, oil burning heaters or heaters of a similar kind.
23. The **TENANT** shall comply with any Act, Regulation, Rule or direction of any Government or statutory body.
24. The **TENANT** shall allow the **LANDLORD** or his **AGENT** to put on the premises a notice or notices 'to let' during the last month of the term of this Agreement. The **TENANT** shall also allow the **LANDLORD** or his **AGENT** to put on the premises a notice or notices 'for sale' or 'auction' at any time during the term of this Agreement and permit access to the premises by the **LANDLORD** or his **AGENT** to present the property to prospective purchasers or tenants upon 24 hours' notice or by agreement with the **TENANT** and the **LANDLORD** or the **LANDLORD'S AGENT**.
25. The **TENANT** acknowledges that no promises, representations, warranties or undertakings have been given by the **LANDLORD** or **AGENT** in relation to the suitability of the premises for the **TENANT'S** purposes or in respect of the furnishings, fittings or appurtenances of the premises otherwise than as provided herein.
26. No consent or waiver of any breach by the **TENANT** of the **TENANT'S** obligations under the Residential Tenancies Act 1997 shall prevent the **LANDLORD** from subsequently enforcing any of the provisions of the Agreement.
27. The **TENANT** agrees to observe and be bound by the Articles of Association of the Service Company or the Rules of the Body Corporate (as the case may be) in so far as they relate to or affect the use, occupation and enjoyment of the premises and the common property provided that the **TENANT** shall not be required to contribute costs of a capital nature or which would, except for the provision, be payable by the **LANDLORD**. The Standard Rules of the Subdivision (Body Corporate) Regulations, if not amended, apply to all Bodies Corporate.
28. In accordance with the provisions of Section 44 of the Residential Tenancies Act 1997, the **LANDLORD** may from time to time and at any time, other than within the terms specified in the Schedule as the fixed term, increase the rent by giving the **TENANT** at least 60 days notice of the increase.
29. This Agreement may be amended only by an Agreement in writing signed by the **LANDLORD** and the **TENANT**.
30. The **TENANT** shall at the **TENANT'S** expense replace all lighting tubes and globes to the premises which become defective during the term of the tenancy unless the defect is proven to be caused by faulty wiring.
31. The **TENANT** agrees to fully and regularly maintain and water the garden area, including the trees and shrubs, to mow the lawn and to remove all garden rubbish from the property. The **TENANT** acknowledges that it is their responsibility to maintain the gardens. If the gardens are not maintained then a gardener will be appointed at the **TENANT'S** expense.
32. If the **TENANT** wishes to vacate the premises at the expiration of the Agreement the **TENANT** shall give the **LANDLORD** or **AGENT** written notice of the **TENANT'S** intention to vacate 28 days prior to the expiration of the Agreement. If the **TENANT** remains in occupation of the premises after the expiration of this Agreement and does not enter into a new fixed term Agreement the **TENANT** must give written notice of the **TENANT'S** intention to vacate the premises specifying a termination date that is not earlier than 28 days after the day on which the **TENANT** gives notice.
33. The **TENANT** acknowledges that pursuant to Section 428 of the Residential Tenancies Act 1997, the **TENANT** shall not refuse to pay rent on the ground that the tenant intends to regard as rent paid by the **TENANT**, the Bond or any part of the Bond paid in respect of the premises. The **TENANT** acknowledges that failure to abide by this section of the Act render the **TENANT** liable to a penalty of \$ 1000.
34. The **TENANT** agrees not to carry out any mechanical repairs or spray painting of any motor vehicles, boats or motor cycles in or around the property including common property. The **TENANT** also agrees to be fully responsible for the removal of any motor cycle, car or boat spare parts or bodies or any other equipment used and to fully reinstate the premises or the land or common property on which it is situated to their original condition forthwith.
35. The **TENANT** must:
 - (a) check each smoke detector in the premises weekly to confirm that it is kept fully operational. These checks are to ensure the safety of the tenant and the security of the premises.
 - (b) replace the battery in each smoke detector on or about 1st January each year (or earlier if this becomes necessary).
 - (c) immediately notify the Agent of any faulty smoke detector (and confirm this advice to the Agent in writing the same day).
36. The **TENANT** acknowledges that the **TENANT** shall insure their possessions. The **TENANT** also acknowledges that the **LANDLORDS'** insurance policy will not provide cover for such possessions.

Please Sign Here:

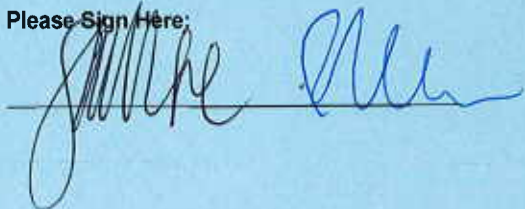


37. The **TENANT** acknowledges that it is their responsibility to professionally steam clean the carpets at the end of the tenancy and provide a receipt for the same.
38. The **TENANT** acknowledges that he/she/they are responsible to pay for water consumption, which appears on the **LANDLORDS'** statement or on accounts received from Barwon Water, with the exception of properties that are not separately metered.
39. The **TENANT** acknowledges that if they break the fixed term agreement they will be required to cover the following costs:
- Rent until the day the new tenant begins to pay rent or until the expiry date of the lease, whichever comes first.
 - Letting fee of \$ 2 weeks rent (plus GST). This is calculated on a pro-rata balance of the fixed term lease period. The landlord is responsible for the remainder of the letting fee charged for securing a new tenant.
 - The total cost of advertising the property for re-letting.
 - Barwon Water Meter Fee: At Cost
 - I (we) have hereby agreed to pay the outstanding disbursements prior to the new tenancy commencing.
40. The **TENANT** acknowledges that there is to be no smoking inside the premises. Any damage caused by the tenant failing to comply with this clause will result in the tenant being held liable for reinstating the property to its original condition. This may include having curtains dry cleaned, ensuring the walls are not yellowed with smoke and any other residual smoke smell being removed from the property at the tenants expense.
41. **Tenant cannot grant a licence or part with occupation without consent**
The tenant must not grant a licence over, or part with occupation of, the premises or a part of the premises – or be a party to an understanding or arrangement in relation to the granting of a licence over, or the parting with occupation of, the premises or a part of the premises – for the purpose of, or in relation to, providing residential accommodation for a fee or other benefit without, in each instance, first obtaining the landlord's written consent which, if given, may be subject to reasonable terms and conditions.
42. **Our office does not issue rent reminder letters. In the event that you fall 15 days in arrears with your rental, our office will immediately issue you with a Notice To Vacate. No excuses for non payment of rental will be accepted.**

HAYDEN REAL ESTATE SPECIAL CONDITIONS

43. I agree to allow photos of the property to be taken at routine inspections.
44. I agree to have all information, where possible, sent directly to my email address stated on my application and agree to regularly check my emails for correspondence
45. I understand and am aware that I am responsible for all costs related to internet or phone line connections where the point is available at the property.
46. I am aware that should I require a tenant transfer to be completed during my tenancy, an administration fee of \$165 inc GST applies for each transfer.
47. If required I agree to allow access to the landlord with 24 hours written notice to complete periodic maintenance of the property (eg oiling of decks, clearing gutters)
48. I agree to purchase a booster box if required to gain television reception.
49. I agree to regularly clean the filters of heating/cooling systems where required.
50. The **TENANTS** acknowledge that they **CANNOT** flush wipes of any description or sanitary items down the toilets or drains. The **TENANTS** acknowledge that they will be held liable for the cost of any invoices relating to this.
51. The **LANDLORD** acknowledges that the **TENANT** has a dog on the premises. The **TENANT** accepts all responsibility for any damage the said dog may cause and undertakes to have the carpet steam cleaned on their vacating the premises. The property is to be fumigated at the expense of the **TENANT** (at the Agents discretion) upon vacating the property.

Please Sign Here:

Two handwritten signatures in blue ink are written over a horizontal line. The signature on the left is more stylized and cursive, while the one on the right is more legible and blocky.

SCHEDULE

Item 1	Date of Agreement	19 September 2018
Item 2	Landlord Name	Ms K Willard c/- Hayden OG Pty Ltd, PO Box 111, Ocean Grove, 3226
Item 3	Agent Name	HAYDEN OG PTY LTD 75 The Terrace, Ocean Grove, 3226 Ph: (03) 5255 1000 Fax: (03) 5255 4744
Item 4	Tenant Name	Suzanne Ure & Richard McLean of 70 Tuckfield Street, Ocean Grove
Item 5	Premises	24 Rosella Court OCEAN GROVE Including chattels (attach inventory if necessary)
Item 6	Rental	\$450.00 per week payable fortnightly in advance
Item 7	Commencing On	06/10/2018 (Subject to Vacant Possession)
Item 8	Rental Payments To (Address of Landlord / Agent)	HAYDEN OG PTY LTD Via direct debit or direct deposit in the Agent's bank account
Item 9	Bond	\$1955.00 HELD BY RTBA Where there is more than one tenant and they do not contribute equally to the total bond the amounts they each contribute are listed here
	Name	Amount \$
	Name	Amount \$
Item 10	Urgent Repairs	The landlord authorises the Agent to undertake urgent repairs up to \$1,800.00
Item 11	Fixed Term	TWELVE (12) MONTHS
Item 12	Commencement Date	06/10/2018
Item 13	Termination Date OR (*Delete where applicable)	05/10/2019

PERIODIC TENANCY

Item 14 Commencement Date

SIGNED by the Landlord(s)

In the presence of (Witness)

SIGNED by the Tenant(s)

In the presence of (Witness)

The TENANT hereby acknowledges having received a copy of a Statement of Rights and Duties, two copies of the Condition Report and a copy of photos for this Tenancy Agreement in accordance with the provisions of the Residential Tenancies Act 1997.

Sign Here

**Per
Landlord**